

National Human Rights Commission Act, 2012

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Amending Acts

1. Some Nepal Laws Amendment and Repeal Act, 2072 (2015) 2072.6.14
2. Act to Amend Some Nepal Acts Relating to Remuneration of the Chairperson and Members of the National Human Rights Commission, 2072 (2015) 2072.10.12
3. Some Nepal Acts Amending Act, 2072 (2015) 2072.11.13
4. Some Nepal Acts Amending Act, 2082 (2025) 2082.04.14

Act Number 14 of the Year 2068 (2011)

An Act Made to Provide for the Functions, Duties, Powers and Procedures of the National Human Rights Commission

Preamble: Whereas, it is expedient to make legal provisions relating to the functions, duties, powers and procedures of the National Human Rights Commission in order to ensure respect, protection and promotion of human rights and its effective implementation,

Now, therefore, the Constituent Assembly, in its capacity as the Legislature-Parliament pursuant to Article 83 of the Interim Constitution of Nepal, 2063 (2007), has enacted this Act. Chapter-1

Preliminary

1. Short Title and Commencement: (1) This Act may be called the "National Human Rights Commission Act, 2068 (2011)."

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Chairperson" means the Chairperson of the Commission.

(b) "Commission" means the National Human Rights Commission established pursuant to Article 248 of the Constitution amended by the Some Nepal Acts Amending Act, 2072..

(c) "Complaint" means a petition or complaint filed to the Commission regarding a violation of human rights or abetment thereof, and said term also denotes information received by the Commission on that matter from any other source.

(d) "Employee" means an employee of the Commission.

(e) "Prescribed" or "as prescribed" means prescribed or as prescribed in the rules framed under this Act.

(f) "Human Rights" means the rights provided by the Constitution and other prevailing laws relating to the life, liberty, equality and dignity of an individual, and said term also denotes rights enshrined in international treaties on human rights to which Nepal is a party.

(g) "Secretary" means the Secretary of the Commission.

(h) "Member" means a member of the Commission, and said term also denotes the Chairperson.

(i) "Constitution" means the Constitution of Nepal. amended by the Some Nepal Acts Amending Act, 2072.
Chapter-2

Meeting, Functions, Duties and Powers of the Commission

3.

Meeting of the Commission: (1) The meeting of the Commission shall be held at least twice a month. (2) The meeting of the Commission shall be held on such date, time and place as specified by the Chairperson. (3) The Secretary shall, following the direction of the Chairperson, normally give information in writing to the Members at least twenty-four hours prior to the meeting, mentioning the date, time, place and subject of discussion of the meeting of the Commission. (4) If a majority of the Members currently holding office in the Commission are present, it shall be deemed to constitute the quorum for a meeting of the Commission. (5) The meeting of the Commission shall be presided over by the Chairperson, and in the absence of the Chairperson, the most senior Member present at the meeting shall preside over the meeting. (6) The decision of the Commission shall be made by a majority of the Members present at the meeting; and if the votes are equal, the person presiding over the meeting shall cast the deciding vote. (7) The decision of the meeting of the Commission shall be certified by the Secretary. (8) Other procedures relating to the meeting of the Commission shall be as determined by the Commission itself. 4.

Functions, Duties and Powers of the Commission: (1) In addition to the functions, duties and powers mentioned in Article 249 of the Constitution amended by the Some Nepal Acts Amending Act, 2072., the other functions, duties and powers of the Commission shall be as follows:- (a) To inspect and monitor prisons, other bodies of the Government of Nepal, public institutions or private institutions or any other place for the protection of human rights, and to give necessary suggestions or directions to the concerned body regarding improvements to be made in such bodies, institutions or places for the protection of human rights, (b) To conduct an investigation, with the permission of the concerned court, into the subject matter of a sub judice case containing claims pending before the court regarding the violation of human rights, (c) To monitor the implementation status of the prevailing laws relating to human rights and make recommendations to amended by the Some Nepal Acts Amending Act, 2082.the Government of Nepal, Provincial Government and Local Level for their effective implementation, (d) To conduct studies and research regarding the protection, promotion, enhancement and implementation of human rights, (e) To recommend to the concerned body to include educational subjects relating to human rights in the curricula of schools and universities, (f) To review the existing situation of human rights and publicize reports relating thereto, (g) To perform or cause to perform other functions considered necessary and appropriate for the protection, promotion and enhancement of human rights. (2) The Commission shall be independent and autonomous in the work of respecting, protecting and promoting human rights. 5. May Draw Attention: (1) The Commission may draw the attention of any body or office-bearer as necessary on any subject relating to the protection and promotion of human rights. (2) After the Commission has drawn attention pursuant to sub-section (1), the concerned body or office-bearer shall take necessary action on that matter and inform the Commission. 6.

Commission May Give Opinion or Advice: (1) On a subject where there is an obligation to send a report to any body under an international treaty relating to human rights, the Government of Nepal shall, before sending the report, send a written communication to the Commission for its opinion. (2) Upon receipt of a written communication pursuant to sub-section (1), the Commission shall, as soon as possible, give its opinion to the Government of Nepal on that subject. (3) If the Government of Nepal requests the Commission's advice regarding the enactment of any law relating to human rights or the amendment of any existing law, the Commission may provide its opinion to the Government of Nepal on that subject. (4) The Commission may recommend to the Government of Nepal to enact new laws relating to human rights, amend any existing laws, or become a party to any international or regional convention. (5) If the Government of Nepal requests the Commission's advice regarding becoming a party to any international or regional treaty relating to human rights, the Commission shall provide its opinion to the Government of Nepal on that subject. 7. **Publication of Name and Maintenance of Record:** (1) The Commission shall publish the name of an office-bearer, person or body, who knowingly fails to comply with or implement a recommendation, order or direction made by the Commission regarding a violation of human rights, as a violator of human rights. (2) Before publishing the name pursuant to sub-section (1), the Commission shall send a written notice to such office-bearer, person or body, mentioning the failure to comply with or implement the recommendation, order or direction of the Commission, allowing a period of fifteen days to submit a defense. (3) If, after sending the written notice pursuant to sub-section (2), the concerned office-bearer, person or body fails to submit a defense within the period, or if the defense submitted is not found satisfactory, the Commission shall publish the name of such office-bearer, person or body pursuant to sub-section (1). (4) After publishing the name pursuant to sub-section (1), the Commission shall keep the name of such office-bearer, person or body recorded. (5) While recommending a person whose name has been published pursuant to sub-section (1) for new appointment, promotion and career development in any public office, the concerned body may also take into account the record kept pursuant to sub-section (4). (6) While assigning a new responsibility to an office-bearer whose name has been published pursuant to sub-section (1), the concerned body may also take into account the record kept pursuant to sub-section (4) regarding his/her work performance. 8.

May Constitute Committee or Task Force: (1) The Commission may constitute a committee or task force as required for the performance of its functions. (2) The functions, duties and powers of the committee or task force constituted pursuant to sub-section (1), and the facilities to be received by the members of such committee or task force, shall be as specified by the Commission. (3) The committee or task force formed pursuant to sub-section (1) shall, after completing the work assigned by the Commission, submit a report of its work to the Commission. (4) The Commission may, if it deems appropriate, dissolve the committee or task force formed pursuant to sub-section (1) at any time. 9. **Provision Relating to Interim Relief and Rescue:** (1) If it appears that a victim person may suffer further loss if immediate relief is not provided or rescue is not made, the Commission shall order the concerned body to provide interim relief or rescue to such person immediately. (2) If the Commission has ordered pursuant to sub-section (1), the concerned body shall provide relief to the victim person immediately. (3) If relief pursuant to sub-section (2) is provided in cash, the concerned person or body shall recover such amount from the human rights violator as prescribed. (4) The Commission may request any association, organization or person for assistance to provide interim relief to the victim person or for the rescue of the victim. (5) Other provisions relating to interim relief and rescue shall be as prescribed. **Chapter-3 Procedure Relating to Complaint Proceedings** 10. **May File Complaint:** (1) In case of a violation of human rights or abetment thereof, the victim person himself/herself or someone on his/her behalf may file a complaint to the Commission as prescribed. (2) Upon receipt of a complaint pursuant to sub-section (1), the Commission shall register such complaint in the prescribed register and provide a copy

thereof to the complainant. (3) If someone informs the Commission orally or through any other means regarding a violation of human rights or abetment thereof, the Commission shall reduce such information to writing and register it in the register pursuant to sub-section (2). (4) Notwithstanding anything contained in the prevailing law, no fee shall be charged while filing a complaint pursuant to sub-section (1) or while giving information pursuant to sub-section (3). (5) Deleted by the Some Nepal Laws Amendment and Repeal Act, 2072. 11.

To Conduct Preliminary Action: (1) Upon receipt of a complaint pursuant to sub-section (1) of Section 10 or receipt of information pursuant to sub-section (3) thereof regarding a violation of human rights or abetment thereof, or if it deems appropriate to conduct investigation and inquiry on its own motion on that subject, the Commission shall immediately conduct a preliminary action as prescribed. (2) While conducting action pursuant to sub-section (1), if it appears prima facie that a violation of human rights or abetment thereof of any person is occurring, the Commission may order the concerned person, body or office-bearer to immediately stop such act. 12. **To Conduct Investigation and Inquiry:** (1) If it appears from the preliminary action conducted pursuant to sub-section (1) of Section 11 that a violation of human rights or abetment thereof of any person has occurred, the Commission may itself or, as necessary, by appointing an investigation team or investigation officer, conduct or cause to conduct investigation and inquiry as prescribed. (2) After the completion of the investigation and inquiry work pursuant to sub-section (1), the investigation team or investigation officer shall submit a report thereof to the Commission. (3) Upon receipt of the report pursuant to sub-section (2), the Commission may, regarding the matters mentioned in such report, take the service of an expert, examine additional evidence or witnesses, or conduct a public hearing as prescribed. (4) Other provisions relating to investigation and inquiry shall be as prescribed. 13. **May Reject Complaint or Keep in Abeyance:** (1) If the complaint, information, or the subject matter investigated and inquired into by the Commission on its own motion appears baseless, or if such subject matter does not appear to fall within the jurisdiction of the Commission, the Commission may, at any time, stating the reason therefor, reject such complaint, information or subject matter or keep it in abeyance. (2) If a complaint is rejected or kept in abeyance pursuant to sub-section (1), the Commission shall inform the concerned complainant of such decision within fifteen days. Provided that, the Commission shall not be obliged to inform the complainant regarding a false complaint filed with the Commission. 14. **Provision Relating to Reconciliation:** (1) Notwithstanding anything contained elsewhere in this Act, if the concerned parties file a joint application requesting reconciliation regarding any complaint pending in the Commission, the Commission may cause reconciliation as prescribed.

Provided that, reconciliation shall not be made on matters considered serious violations of human rights and humanitarian law under international law, or matters that cannot be compromised under prevailing law. (2) It shall be the duty of the concerned parties to comply with the reconciliation made pursuant to sub-section (1). (3) After reconciliation has been made regarding a complaint pursuant to sub-section (1), proceedings relating thereto shall be deemed concluded, and no further complaint may be made on that subject. (4) Other provisions relating to reconciliation shall be as prescribed. 15. **Decision Must be Made:** The Commission shall, based on the evidence obtained from investigation and inquiry conducted regarding a complaint or information received or the subject matter proceeded with on its own motion concerning a violation of human rights or abetment thereof, make a decision, stating the basis and reasons whether a violation of human rights or abetment thereof has occurred or not, normally within six months from the date of filing the complaint: Provided that, in cases of a nature where a decision cannot be made within six months, the Commission shall not be prevented from making a decision, stating the reason. 16. **Provision Relating to Compensation:** (1) If, from the investigation and inquiry pursuant to Section 12, it appears that compensation

must be provided to the victim person, the Commission shall, while making a decision pursuant to Section 15, make a decision mentioning this matter as well. (2) The decision made pursuant to sub-section (1) must specify the type, quantum or amount of compensation. (3) While determining the amount pursuant to sub-section (2), the Commission may determine up to a maximum of three hundred thousand rupees depending upon the condition of the victim person. (4) Notwithstanding anything contained elsewhere in this Section, if the victim person has already received compensation under other prevailing laws regarding the violation of human rights, or has initiated proceedings for compensation, the Commission shall not make any decision regarding compensation. (5) The basis to be taken while making a decision to provide compensation pursuant to this Section, and other provisions relating to compensation, shall be as prescribed. 17.

Implementation of Recommendation, Decision or Order of the Commission: (1) The Commission shall send a written communication to the concerned office-bearer, person or body for the implementation of a recommendation, decision or order made under the Constitution or this Act. (2) Upon receipt of a written communication for implementation of a recommendation, decision or order from the Commission pursuant to sub-section (1), the concerned office-bearer, person or body shall normally implement such recommendation, decision or order within three months and inform the Commission. (3) If there is difficulty in implementing the recommendation, decision or order received from the Commission pursuant to sub-section (2), the concerned office-bearer, person or body shall send information relating thereto to the Commission within two months from the date of receipt of the recommendation, decision or order from the Commission, stating the reason therefor. (4) Upon receipt of information pursuant to sub-section (3), the Commission shall consider the matter and make a decision again, and while making a decision thus, the Commission may recommend for implementation either in the same form or with amendments. (5) Upon receipt of a written communication for implementation after a decision has been made again by the Commission pursuant to sub-section (4), the concerned office-bearer, person or body shall implement the decision as soon as possible and inform the Commission. (6) The concerned body shall provide compensation to the victim person pursuant to the decision made by the Commission within the period specified in sub-section (2). If the victim person has died or is not in his/her senses, the compensation shall be provided to such person among the dependent spouse, father, mother, son, daughter, brother, sister, grandson, granddaughter, grandfather or grandmother as the Commission deems appropriate. (7) If it is determined in a decision made by the Commission that a human rights violation has occurred due to any specific office-bearer doing any act with mala fide intention or with partiality or prejudice towards someone, and it is mentioned that the compensation must be provided to the victim person by such office-bearer, the body where such office-bearer is currently serving shall provide the compensation. (8) The amount of compensation provided to the victim person by the concerned body pursuant to sub-section (7) shall be deducted by such body from the monthly remuneration or any other amount receivable by the concerned office-bearer.

Provided that, if such office-bearer has already retired from service at the time of the decision by the Commission, the concerned body shall immediately provide such compensation amount to the victim person and recover such amount from such person in accordance with prevailing law.

(9) While providing compensation to the victim person pursuant to this Section, if cash has already been provided as interim relief pursuant to Section 9, such amount shall be deducted as prescribed.

(10) Deleted by the Some Nepal Laws Amendment and Repeal Act, 2072.

(11) The Commission may send a communication to the concerned body for departmental or other action against an office-bearer, person or body whose name is in the record pursuant to Section 7, on the ground of

non-cooperation or non-compliance with directions in the course of investigation, inquiry or examination conducted by the Commission regarding a violation of human rights or pursuant to this Act.

(12) The Commission may send a communication to the concerned body not to appoint, promote or include an office-bearer or person whose name has been published on the basis of a recommendation made by the Commission regarding a violation of human rights pursuant to Section 7, in foreign training for up to three years from that date.

(13) Other provisions relating to the implementation of a recommendation, order or decision of the Commission shall be as prescribed. Chapter-4

Miscellaneous

18. Commission May Coordinate or Cooperate: The Commission may consult, seek assistance, or make necessary coordination or cooperation with any other commission, committee or body in the course of its work and proceedings. 19. May Provide or Obtain Expert Service: (1) The Commission may, upon the request of any body, provide specialized or expert service as prescribed on any subject relating to human rights.

(2) The Commission may, in the course of its work and proceedings, take the service of any specialized body or expert as prescribed.

(3) The functions, duties and powers of the body or expert providing specialized or expert service pursuant to sub-section (2), and the facilities to be received by such body or expert, shall be as specified by the Commission. 20.

May Maintain Contact and Relationship with Organizations: (1) The Commission may, in order to effectively discharge its responsibilities under the Constitution, this Act and other prevailing laws, maintain necessary contact and relationship with national and international organizations working on the protection and promotion of human rights, and make agreements for the exchange of assistance. (2) If the agreement pursuant to sub-section (1) contains financial matters, the Commission shall obtain the approval of the Ministry of Finance regarding such agreement. (3) If any foreign association or organization desires to conduct any program within Nepal relating to the protection and promotion of human rights, it shall obtain the consent of the Commission as prescribed. 21. Assistance Must be Provided in the Work and Proceedings of the Commission: (1) The concerned body or office-bearer shall provide the assistance requested by the Commission. (2) The Commission shall send a communication to the concerned body to initiate departmental action against an office-bearer who knowingly fails to provide requested information, documents or evidence, knowingly fails to comply with a recommendation, order or decision of the Commission, knowingly obstructs the work of the Commission, or absents himself/herself without reason when summoned for appearance by the Commission. 22. May Inform to File Complaint in Court or Other Body: If a subject matter investigated and inquired into by the Commission pursuant to this Act is resolved by a court or any other body, and if it appears that the victim person would receive justice, or if such subject matter appears to fall within the jurisdiction of any court or body, the Commission may inform the concerned party to go and file a complaint in such court or body in accordance with prevailing law on that subject. 23. Work and Proceedings of Commission Not to be Affected: The work and proceedings of the Commission shall not be affected only by the reason of a vacancy in the position of any Member. 24. Acting to Perform Work: If, for any reason, the position of the Chairperson becomes vacant, or if the Chairperson goes abroad, or is on leave for more than seven days, the most senior Member of the Commission shall act as the Acting Chairperson of the

Commission. Amended by the Act to Amend Some Nepal Acts Relating to Remuneration of the Chairperson and Members of the National Human Rights Commission, 2072.25. Remuneration and Facilities: The remuneration of the Chairperson and Members shall be equivalent to that of the Chief Justice of Nepal and the Judge of the Supreme Court, respectively. Provided that, regarding facilities, it shall be in accordance with the prevailing law relating to remuneration, terms of service and facilities of office-bearers of constitutional bodies. 26.

Office of the Commission: (1) The central office of the Commission shall be located in Kathmandu Valley. (2) The Commission may, in consultation with the Ministry of Finance as necessary, open amended by the Some Nepal Acts Amending Act, 2082. Provincial Offices, amended by the Some Nepal Acts Amending Act, 2082. Provincial Branch Offices or Liaison Offices. 27. Organizational Structure of the Commission: The Government of Nepal shall approve the organizational structure and staffing of the Commission based on the recommendation of the Commission. 28. Secretary of the Commission: (1) There shall be a Secretary to act as the administrative chief of the Commission. (2) The appointment of the Secretary shall be made by the Government of Nepal based on the recommendation of the Commission. (3) The qualification, remuneration, facilities and other terms of service of the Secretary shall be equivalent to an employee of the Special Class of the Government of Nepal published in the Nepal Gazette. (4) The Secretary shall work under the general direction of the Chairperson. (5) In addition to the functions, duties and powers specified in this Act and other prevailing laws, the other functions, duties and powers of the Secretary shall be as follows:- (a) To perform functions relating to the administration and management of the Commission, (b) To prepare the annual budget, programs and plans of the Commission and submit them to the Commission, (c) To oversee, maintain and care for the movable and immovable property of the Commission, (d) To make necessary arrangements for the smooth operation of the work and proceedings of the Commission, (e) To implement or cause to implement the policies, programs and decisions of the Commission, and (f) To perform other functions as prescribed. (6) If the position of the Secretary falls vacant, the Commission may designate the most senior officer among the officer-level employees working in the Commission to act as the Acting Secretary until other arrangements are made. 29. Emblem of the Commission: The Commission may bring into use a separate emblem of the Commission in addition to the seal bearing the national emblem. 30. Delegation of Powers: The Commission may delegate some of the powers vested in it under the Constitution and this Act to the Chairperson, a Member, any officer-level employee of the Commission, any officer-level employee of the Government of Nepal, or a committee, task force, or any body, association, organization or person constituted by the Commission. 31.

Contact with Government of Nepal: While contacting the Government of Nepal, the Commission shall do so through the Office of the Prime Minister and Council of Ministers. Provided that, this Section shall not be deemed to prevent the Commission from contacting any other body directly in the course of performing its functions. 32. Power to Frame Rules, Procedures and Guidelines: (1) The Commission may frame necessary rules to implement the objectives of this Act. While framing rules containing matters that impose a financial burden on the Government of Nepal, the approval of the Ministry of Finance shall be obtained. (2) The Commission may frame and implement necessary procedures or guidelines for the orderly conduct of its functions. 33. Protection for Acts Done in Good Faith: No suit or legal proceedings shall be instituted against the Commission, the Chairperson, a Member, an employee, or any person assigned by the Commission, in respect of any act done or attempted to be done in good faith under the Constitution, this Act or the rules framed under this Act. 34. To be According to Prevailing Law: Matters provided for in this Act shall be according to this Act, and other matters shall be according to the prevailing law. 35. Repeal and Saving: (1) The Human Rights Commission Act, 2053 (1997) is hereby repealed. (2) All acts and proceedings done

under the Human Rights Commission Act, 2053 (1997) shall be deemed to have been done under this Act.